

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

June 24, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.E.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
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9:01 1	23CV418565	<i>Austin Deluca</i> <i>v.</i> <i>Licari Manufacturing Inc.,</i> <i>et al.</i>	Order on Motion by Defense Counsel of Christopher J. Olson and Kurt E. Wilson of Sweeney Mason LLP to be Relieved as Counsel for Defendants Licari Manufacturing Inc. and Scott Brunshwiler Defense Counsel of Christopher J. Olson and Kurt E. Wilson of Sweeney Mason LLP move under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Defendants Licari Manufacturing Inc. and Scott Brunshwiler The Motion complies with applicable law and is well supported and duly served. Plaintiff's objection, based largely on wanting to bring more discovery motions, is overruled. Accordingly, the Motion is hereby GRANTED as follows: 1. Defense Counsel of Christopher J. Olson and Kurt E. Wilson of Sweeney Mason LLP are relieved as counsel for Defendants Licari Manufacturing Inc. and Scott Brunshwiler; 2. As California law requires Defendant Licari Manufacturing Inc., a corporation, to be represented by counsel in this civil action, Defendant Licari Manufacturing Inc. is ORDERED within 30 days of today to hire new counsel to represent it in this action; 3. Defendant Licari Manufacturing Inc. is ORDERED to file a Notice of Appearance of its new counsel in this action within 30 days of today; 4. Defendant Licari Manufacturing Inc. is put on NOTICE that if it fails to comply with this ORDER within 30 days of today then it will be subject to escalating monetary and non-monetary sanctions including issue, evidentiary, and terminating sanctions.
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			5. To give new counsel for Defendant Licari Manufacturing Inc. a fair opportunity to prepare for trial, the following dates are CONTINUED as follows: a. The July 29, 2026 Mandatory Settlement Conference is CONTINUED to May 12, 2027 at 9:04 AM in Department 16; b. The July 30, 2026 Trial Assignment Hearing is CONTINUED to May 13, 2027 at 1:31 PM in Department 18; c. The August 3, 2026 Trial is CONTINUED to May 17, 2027 at 8:45 AM in Department 18; <i>and</i> 6. All parties and all counsel are put on NOTICE that there will be no further delay or continuance of the May 17, 2027. So finish any further discovery and motion practice at least 30 days before May 17, 2027. The Court will sign and file the Proposed Order that has been prepared by Defense Counsel and filed with this Motion, with the Court expressly adding and including all the conditions set forth above. SO ORDERED.
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9:01 2	24CV439102	<i>Richard Vega, et al.</i> v. <i>Thomas Kakinami, et al.</i>	Order on Compromise of Minor's Claim Before the Court is a Petition filed on May 27, 2026 by Richard Vega (the "Petitioner"), who is the Parent and Guardian ad item of Ariel Vega, a minor, for an Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "May 27, 2026 Petition") and for a related Order to Deposit Funds in Blocked Account. The May 27, 2026 Petition is well grounded in the law, well supported by the facts, and reasonable in all respects. The Court finds that all the relief sought is in the best interests of the minor Ariel Vega. Accordingly, the May 27, 2026 Petition is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Orders that were prepared and filed with this Petition on May 27, 2026, specifically: (1) Order Approving a Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor, and (2) Order to Deposit Funds in Blocked Account. SO ORDERED.
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9:01 3	25CV479623	<i>Alicia Villarreal</i> v. <i>United Security Specialists, Inc.,</i> <i>et al.</i>	Order on Motion by Plaintiff's counsel Daniel Ginzburg of Frontier Law Center to be Relieved as Counsel for Plaintiff Alicia Villarreal Plaintiff's counsel Daniel Ginzburg of Frontier Law Center moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiff Alicia Villarreal. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Plaintiff's counsel and filed with this Motion. SO ORDERED.
9:01 4			
9:01 5			
9:00 1	23CV415280	<i>Bijan Haghighi</i> v. <i>City of Mountain View, et al.</i>	Order on Plaintiff's Motion for Leave to File a Supplemental Complaint <i>See</i> Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 2	23CV424913	<i>Peter Xu Zhong</i> <i>v.</i> <i>Pohing Chan, et al.</i>	Order on Defendant Pohing Chan's Motion for Summary Judgment or, in the alternative, Summary Adjudication <i>See Line 2 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 3	23CV427141	<i>Velocity Investments, LLC</i> <i>v.</i> <i>John Madrid, et al.</i> <i>And Related Cross-Action</i>	Order on Defendant John Madrid's Motion to Compel Further Responses to Requests for Production of Documents and for Sanctions <i>See Line 3 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 4	24CV435406	<i>Raymond Tesconi</i> <i>v.</i> <i>Dark Run Ventures, Inc., et al.</i>	Order on Defendant William Stuart's Motion for Terminating Sanctions <i>See Line 4 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 5	25CV457671	<i>Scott Johnson</i> <i>v.</i> <i>Blvd Coffee Inc., et al.</i>	Order on Plaintiff's Motion for Attorneys' Fees Pursuant to the Judgment entered and Agreement of the Parties <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	25CV462169	<i>Hai Bui</i> <i>v.</i> <i>Toyota Motor Sales, U.S.A., Inc., et al.</i>	Order on Defendant's: 1. Demurrer to the Sixth Cause of Action of the First Amended Complaint; and 2. Motion to Strike the punitive damages claim from the First Amended Complaint <i>See Line 6 below for complete tentative ruling on both the Demurrer and Motion to Strike.</i> After the hearing, the Court will prepare and file one formal Order on both the Demurrer and Motion to Strike.
9:00 7	25CV462169	<i>Hai Bui</i> <i>v.</i> <i>Toyota Motor Sales, U.S.A., Inc., et al.</i>	Order on Defendant's Motion to Strike the punitive damages claim from the First Amended Complaint <i>See Line <u>6</u> below for complete tentative ruling on both the Demurrer and Motion to Strike.</i> After the hearing, the Court will prepare and file one formal Order on both the Demurrer and Motion to Strike.

9:00 <u>8</u>	25CV468257	<i>Argent Investments LLC</i> <i>v.</i> <i>Ye Rang Choi, et al.</i> <i>And Related Cross-Action</i>	Order STAYING Cross-Defendants Argent Investments, LLC and Stanley Wood’s Motion to Strike the punitive damages claim from the First Amended Cross-Complaint In light of the issues now on appeal before the Sixth Appellate District because of the filing of the Notice of Appeal of the Order Vacating the Default Judgment, the Court STAYS this case until the appeal is complete. Accordingly, the Court orders this Hearing on Cross-Defendants’ Motion to Strike the punitive damages claim from the First Amended Cross-Complaint is STAYED until the appeal is complete. After the appeal is complete, Cross-Defendants may serve a Notice resetting in Department 16 this Hearing on Cross-Defendants’ Motion to Strike the punitive damages claim from the First Amended Cross-Complaint. SO ORDERED.
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9:00 <u>9</u>	25CV468257	<i>Argent Investments LLC</i> <i>v.</i> <i>Ye Rang Choi, et al.</i> <i>And Related Cross-Action</i>	Order on Cross-Defendants Argent Investments, LLC and Stanley Wood's Demurrer to the First Amended Cross-Complaint In light of the issues now on appeal before the Sixth Appellate District because of the filing of the Notice of Appeal of the Order Vacating the Default Judgment, the Court STAYS this case until the appeal is complete. Accordingly, the Court orders this Hearing on Cross-Defendants' Demurrer to the First Amended Cross-Complaint is STAYED until the appeal is complete. After the appeal is complete, Cross-Defendants may serve a Notice resetting in Department 16 this Hearing on Cross-Defendants' Demurrer to the First Amended Cross-Complaint. SO ORDERED.
9:00 <u>10</u>	25CV476443	<i>JPMorgan Chase Bank, N.A.</i> <i>v.</i> <i>Don Nguyen</i>	Order on Defendant Don Nguyen's Motion to Quash Service of Summons See Line 10 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			

9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Bijan Haghighi v. City of Mountain View, et al.*

Case No.: 23CV415280

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

Plaintiff Bijan Haghighi (“Plaintiff”) moves for leave to file a Supplemental Complaint under Code of Civil Procedure Section 464(a) on the grounds that new facts and occurrences relevant to the existing causes of action have arisen after the filing of the operative Third Amended Complaint (“TAC”). Notice of Motion (the “Motion”) at 1:23-27 (filed: Oct. 27, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

For this Motion, dates matter.

On May 3, 2023, Plaintiff commenced this action by filing a Complaint bringing claims for civil rights, tort, and contract violations against defendants MVLA Union High School District (“MVLA”) and Achilles Walker (“Walker”) (collectively, “Defendants”), among others.

On June 26, 2023, Plaintiff filed his First Amended Complaint (“FAC”).

On September 1, 2023, Plaintiff filed his Second Amended Complaint (“SAC”).

And on January 26, 2024—a key date on which resolution of this Motion hinges—Plaintiff filed his TAC.

On October 27, 2025, Plaintiff filed this Motion to file Supplemental Complaint under Section 464(a) to allege new facts and occurrences relevant to the existing causes of action have arisen after the filing of the operative TAC. Motion at 1:23-27.

Defendants oppose the Motion.

For the reasons set forth below, the Motion under Section 464(a) is DENIED.

I. Legal Standard under Section 464(a)

The plain text of Code of Civil Procedure Section 464(a) provides: “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer alleging facts material to the case *occurring after* the former complaint or answer.” C.C.P. § 464(a) (emphasis added). Likewise, the Rutter Group Guide to Civil Procedure Before Trial makes clear that the “function” of a supplemental pleading under Section 464(a) is “to allege relevant facts *occurring after*” the operative pleading was filed. California Practice Guide: Civil Procedure Before Trial at 6:791(a) (The Rutter Group, 2025 Ed.) (emphasis in original) (citing C.C.P. § 464(a) and *Foster v. Sexton* (2021) 61 Cal. App. 5th 998, 1032).

II. Analysis of the Motion under Section 464(a)

This Motion for leave to file a Supplemental Complaint under Section 464(a) fails for two reasons: (1) the vast majority of new allegations that Plaintiff wishes to add *occurred before* the operative TAC was filed on January 24, 2024; (2) even if the Court were to reconceptualize this Motion as a motion to file a Fourth Amended Complaint as opposed to a motion for leave to file a Supplemental Complaint under Section 464(a), the Motion still fails because it badly fails to comply with multiple requirements of CRC 3.1324 for motions to file amended pleadings.

a. The Motion is Denied because the vast majority of the allegations that Plaintiff wants to add occurred *before* the operative TAC was filed.

Plaintiff’s Motion under Section 464(a) is denied because the Motion violates the plain text Section 464(a). Whereas Section 464(a) allows a party to file a Supplemental Pleading alleging relevant facts “*occurring after*” the operative TAC, C.C.P. § 464(a) (emphasis added), here 11 out of the 14 new alleged violations that Plaintiff wants to put in its proposed Supplemental Complaint “occurred between October 4, 2021, and August 5, 2023, all *before* Plaintiff filed the TAC on January 26, 2024.” Opp. at 5:11-13 (emphasis added). Before and after are opposites, they conflict. So as what Plaintiff seeks to do here conflicts with the plain text of Section 464(a), Plaintiff’s Motion under Section 464(a) must be DENIED.

b. Even if the Court were to treat this as a Motion to *amend* to file a Fourth Amended Complaint, such a Motion still fails because Plaintiff fails to satisfy the requirements for a motion to amend under California Rule of Court 3.1324.

Given that this Motion to file a Supplemental Complaint is plainly improper under Section 464(a) because the vast majority of new allegations occurred before the TAC was filed, the Court still has discretion to treat this Motion as one to file an *amended* pleading, which here would be the *Fourth* Amended Complaint, because it deals with allegations before the TAC was filed. California Practice Guide: Civil Procedure Before Trial at 6:791(a)(1)(b) (a pleading titled “supplemental complaint” may be treated as an amended

complaint where it deals with matters occurring before filing the operative complaint).

Even so, a motion to file an amended pleading must comply with the requirements of California Rule of Court (“CRC”) 3.1324, which requires, in relevant part, Plaintiff to include with the motion: a copy of the proposed amendment, serially numbered to differentiate from previous pleadings or amendments; including proposed allegations, where, by page, paragraph, and line number those allegations will be located; and a declaration that specifies the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reason why the request for amendment was not made earlier. CRC 3.1324(a) & (b).

But Plaintiff’s Motion violates all those requirements because it:

- Fails to include a copy of the proposed amendment;
- Fails to state what allegations are proposed to be amended;
- Fails to explain the effect of the amendment;
- Fails to explain why the amendment is necessary and proper;
- Fails to explain why the facts giving rise to the amended allegations were discovered, and
- Fails to explain why the request for amendment was not made earlier.

Opp. at 5:3-7.

Accordingly, even if the Court were inclined to treat this Motion as one to file a Fourth Amended Complaint, the Court DENIES the Motion to amend for multiple violations of CRC 3.1324.

Moreover, in light of Plaintiff’s multiple violations of CRC 3.1324 here and the fact that he has already been allowed to file a *Third* Amended Complaint in this case, Plaintiff cannot be heard to argue that this Court is being unfair to him let alone causing him undue prejudice by not allowing him to file a *Fourth* Amended Complaint now.

III. Conclusion and Order

For all the reasons set forth above, Plaintiff’s Motion under Code of Civil Procedure Section 464(a) to file a Supplemental Complaint is **DENIED without prejudice**.

The Court notes that Plaintiff may still *during* the trial, which will begin on December 14, 2026, seek leave from the trial judge to amend his pleading to conform to proof under Code of Civil Procedure Sections 473(a)(1) and 576. Of course, the Court now takes no position whatever on whether the trial judge should grant or deny such a motion if one were to be brought, but simply points out that today’s Order does not bar Plaintiff from bringing such a motion during trial if Plaintiff wishes to do so then.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 2

Case Name: *Peter Xu Zhong v. Pohing Chan, et al.*

Case No.: 23CV424913

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Pohing Chan (“Chan” or “Defendant”) moves for Summary Judgment or, in the alternative, Summary Adjudication in favor of Chan and against Plaintiff Peter Xu Zhong (“Zhong” or “Plaintiff”) under Code of Civil Procedure Section 437c on the grounds that there is no triable issue of material fact as to any causes of action, which are without merit as a matter of law, and Chan is entitled to judgment as a matter of law on Zhong’s Complaint in this independent action in equity to set aside and vacate the default judgment entered in *Chan v. Zhong*, Santa Clara County Superior Court Case No. 20CV369927. Notice of Motion (the “Motion”) at 1:22-2:8 (filed: Nov. 24, 2025). The Motion is based on the following grounds:

1. The default judgment in Case No. 20CV369927 is valid and not void for lack of personal jurisdiction.
2. Zhong cannot meet his burden to rebut the presumption of proper service created by the registered process server’s Proof of Service.
3. Zhong cannot introduce or establish extrinsic fraud or any other equitable basis to set aside the default judgment.
4. Zhong’s claims are barred by laches and other applicable defenses.
5. Zhong’s lacks admissible evidence to support one or more essential elements of his claims.

Id. at 2:9-18.

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, including all the evidence and separate statements and authorities submitted by each party, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Zhong commenced this Case No. 23CV424913 on December 1, 2023 by filing the Complaint against Chan. Next, on December 1, 2023, Zhong filed a first amended complaint (“FAC”) asserting a single claim for Independent Action to Vacate and Set Aside Default Judgment in Case 23CV424913.

According to the FAC, Zhong was a defendant in a separate case—Case No.

20CV369927, which we will refer to as the “Underlying Case”, filed by Chan against Zhong in Santa Clara County Superior Court on August 26, 2020. (FAC, ¶ 1.) The Underlying Case asserted claims for breach of contract, fraud, and common counts. (*Id.* at ¶ 4.) On January 11, 2021, Chan filed a Proof of Service on Zhong in the Underlying Case (the “Proof of Service”) and, on that same date, Chan filed a request for entry of default and judgment in the amount of \$57,560.95 plus interest, which was thereafter entered against Zhong (“Default Judgment”) in the Underlying Case. (*Id.* at ¶ 5.)

In his FAC in this Case No. 23CV424913, Zhong asserts that the Default Judgment is void on its face for lack of personal jurisdiction because Chan failed to comply with due process because he never served Zhong in the Underlying Case. (FAC, ¶¶ 6-7.) While the Proof of Service indicated Zhong was served on December 8, 2020, Zhong now claims that Zhong was not the person who was served. (*Id.* at ¶ 8, Ex. A.)

On April 19, 2022, Zhong received a letter from his bank notifying him of a required withdrawal due to a legal order in the amount of \$58,315.29. (FAC, ¶ 9.) Zhong was not aware of any legal order against him. (*Ibid.*) Zhong asserts that the Default Judgment failed to comply with due process requirements because he was not the actual person served. (*Id.* at ¶¶ 11-14.) Zhong asserts that the probability of Chan obtaining judgment against him on the merits would be unlikely. (*Id.* at ¶¶ 15-25.)

In this Case No. 23CV424913, Zhong now seeks to adjudicate that the Default Judgment against him in the Underlying Case is void because he was never served with process in accordance with the law.

On November 24, 2025, Chan in this Case No. 23CV424913 filed this Motion for Summary Judgment or, in the alternative, Summary Adjudication under Code of Civil Procedure section 437c. Zhong opposes the Motion.

I. Legal Standard on Motion for Summary Judgment or Summary Adjudication

A motion for summary judgment “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact[.]” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.)

If the moving party makes the necessary initial showing, the burden of production shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal.4th at p. 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the

applicable standard of proof.” (*Ibid.*) “[I]f the court concludes that the [opposing party’s] evidence or inferences raise a triable issue of material fact, it must conclude its consideration and deny the [moving party’s] motion.” (*Id.* at p. 856.)

Throughout the process, the trial court “must consider all of the evidence and all of the inferences reasonably drawn therefrom[.]” (*Aguilar, supra*, 25 Cal.4th at p. 844 [internal quotations omitted].) The moving party’s evidence is strictly construed, while the opposing party’s evidence is liberally construed. (*Id.* at p. 843.)

II. Requests for Judicial Notice

In connection with this Motion, Chan seeks Judicial Notice of the following documents:

- 1) Proof of Service in Underlying Case (Ex. 1);
- 2) Abstract of Judgment in Underlying Case (Ex. 2);
- 3) Writ of Execution issued by Santa Clara County Superior Court (Ex. 3);
- 4) Memorandum of Costs filed with Writ of Execution (Ex. 4);
- 5) Debtor Examination to enforce Judgment (Ex. 5); and
- 6) Declaration filed by Zhong in current lawsuit (Ex. 6).

Chan’s request for Judicial Notice of each exhibit is **GRANTED**. (See *Stepan v. Garcia* (1974) 43 Cal.App.3d 497, 500 [the court may take judicial notice of its own files].)

In turn, Zhong seeks Judicial Notice of the following:

- 1) Complaint in the Underlying Case (Ex. A)¹;
- 2) Proof of Service of Summons in Underlying Case (Ex. B);
- 3) Request for Entry of Default and Court Judgment in Underlying Case (Ex. C);
- 4) Proof of Service in a separate case involving Zhong (20CV369925) (Ex. D); and
- 5) Google Maps screenshot showing various routes from Fixlaptop.com to Zhong’s home (Ex. E).

Zhong’s request is **GRANTED** for each Exhibit.

¹ Both Defendant Chan and Plaintiff Zhong labeled their exhibits using numbers. For clarity, the Court will instead refer to Plaintiff Zhong’s exhibits as Exhibits A through E.

III. Zhong's Objections to the Chan's Evidence are Overruled for purposes of this Motion

In Zhong's separate statement in support of his opposition to the motion for summary judgment he includes several objections to Chan's evidence. Each objection made in the separate statement is **OVERRULED** for failure to comply with California Rules of Court, rule 3.1352 requiring all written objections to served and filed separately from other papers in support of the opposition. Even apart from CRC 3.1352, Zhong's objections are overruled because the Court is quite capable, in the broad exercise of its discretion, of considering Chan's evidence and giving it whatever weight, if any, that it is due.

IV. Principles governing Independent Action in Equity

This case is an independent action in equity to set aside default judgment for lack of personal jurisdiction, brought under Code of Civil Procedure section 473, subdivision (d). This section states, in part, that a court may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).) The judgment may be valid on its face but void as a matter of law due to improper service. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371.) "A default judgment which is in excess of jurisdiction may be set aside at any time either by motion or by an independent action in equity." (*Don v. Cruz* (1982) 131 Cal.App.3d 695, 703, citing *Kass v. Young* (1977) 67 Cal.App.3d 100, 105.)

A judgment debtor may institute an independent action in equity to set aside a default judgment taken in a prior action due to an alleged failure to properly serve the summons and complaint in accordance with the law. (See *Groves v. Peterson* (2002) 100 Cal.App.4th 659, 666-670.) Importantly, for purposes of the present Motion, such an independent action is *not* subject to any time limit. (*Id.* at p. 670, fn. 5.)

In support of the Motion for summary judgment, Chan makes the following arguments: 1) the default judgment is presumed valid and Zhong cannot rebut the proof of service and 2) the action is time barred by laches and unreasonable delay.

V. While the Proof of Service is entitled to a Presumption of Validity, Zhong carries his burden of raising disputes of fact over whether he was served in the Underlying Action.

Chan correctly points out that a registered process server's proof of service is entitled to a rebuttable presumption of validity. (Evid. Code, § 647; *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 [where proof of service complies with applicable statutory requirements, it creates a rebuttable presumption that the service was proper]; Motion, p. 7:6-8.) To support Chan's assertion that service was proper, Chan provides the proof of service in the Underlying Case that reflects personal service on Zhong at his confirmed residence on December 8, 2020. (Evidence Index, Ex. 1 [proof of service].) The driver's license attached to the FAC confirms Zhong's address.

(See FAC, Ex. C.) The proof of service indicates that on December 8, 2020, a registered process server from Galaxy Process Servers, personally served Peter Xu Zhong at 684 Clara Vista Ave., Santa Clara, CA 95050. (*Ibid.*) Gabriel Aragon (Registration No. 1623) signed the proof of service under penalty of perjury on December 11, 2020. This is sufficient to invoke the presumption of validity.

Further, in response to the FAC's assertion that there are discrepancies in the listed age, height, and weight on the proof of service, Chan contends that minor descriptive discrepancies do not invalidate service, especially where the description is substantially similar and service occurred at the Zhong's residence. (Motion, p. 7:11-17.) Here, the proof of service states that the party served was an Asian male with black hair, 45 years old, 5 feet 11 inches tall, and 165 pounds. (Evidence Index, Ex. 1.) In contrast, Zhong asserts he is an Asian male with black hair, but at the time, was 51 years old, 5 feet 9 inches tall, and 175 pounds. (FAC, ¶ 13.) In support, Chan relies on Zhong's driver's license to show that the descriptions are similar. Thus, Chan proffers evidence that service was made at Zhong's address and to a man with substantially similar characteristics.

Based on the foregoing, Chan meets his prima facie burden for purposes of the Motion of establishing that Zhong properly served. Thus, the burden shifts to Zhong to present evidence that raises a triable issue of material fact on this point.

In Opposition, Zhong disputes that he was served in the Underlying Case. While the process server's notes on this point are so murky and illegible that they becloud this issue rather than illuminate it, Zhong does present evidence through his Sworn Declaration raising a triable issue of material fact over whether he was served in the Underlying Case. Zhong states in his signed declaration, under penalty of perjury, that the proof of service inaccurately describes his appearance. (Zhong Decl., ¶¶ 8-10; FAC, Ex. C; see also *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 941 fn. 6 [a sworn declaration is sufficient to rebut the presumption of service].) Further, Zhong provides evidence that he was at FixLaptop at approximately 11:25 a.m. on December 8, 2020, approximately five minutes before the process server claims personal service occurred. (Silva Decl., Exs. 1-2; Zhong Decl., ¶ 14.) Based on this, the Court finds that Zhong has proffered sufficient evidence to establish there is a triable issue of material fact, which renders summary judgment inappropriate. (See *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540 [when declarations or testimony submitted by both sides conflict on material facts, the court cannot weigh the evidence in ruling on a motion for summary judgment].)

The Court hastens to add that it does *not* now find as a matter of fact and does *not* now rule as a matter of law that Zhong was not properly served in the Underlying Case. Rather, the Court far more modestly finds that Zhong has raised a triable issue of material fact on this point, rendering summary judgment inappropriate here now.

VI. This Independent Action in Equity is not time barred by laches or unreasonable delay.

Chan also asserts laches and unreasonable delay, arguing that the equitable action to set aside the default judgment is not permitted because 1) Zhong failed to act diligently

and 2) Zhong was not prevented from participating in the original action due to extrinsic fraud or mistake. (Motion, p. 8:13-16, citing *In re Marriage of Park* (1980) 27 Cal.3d 337, 341–342 (*Park*)). Chan asserts that Zhong waited over two years and two months after the entry of default judgment, after recording of Abstract Judgment on his family residence, and more than 16 months after Chan sought to collect the Judgement balance due through bank levies, to file this action. (Motion, p. 8:18-23.) As a result, Chan argues that laches bar Zhong’s claim here. (*Id.* at p. 8:22-23.)

Chan’s reliance on *Park* is unavailing. *Park* held that a “final judgment may be set aside by a court if it has been established that extrinsic factors have prevented one party to the litigation from presenting his or her case.” (*Id.* at p. 341 [emphasis added].) In *Park*, the court stated that “**a motion to vacate a judgment** should not be granted where it is shown that the party requesting equitable relief has been guilty of inexcusable neglect or that laches should attach.” (*Park, supra*, 27 Cal.3d at p. 345 [emphasis added].) Code of Civil Procedure section 473.5 requires that **a motion**, in an underlying case, to set aside default judgment as void for defective service of process must be filed within a reasonable time not exceeding two years from the entry of default judgment. (Code Civ. Proc., § 473.5.) If this *were* a motion brought in the Underlying Case, such a motion may have been untimely. *But* California precedent holds that that “an independent action in equity to set aside a judgment on [the ground of improper service] is not subject to a time limit.” (*Groves, supra*, 100 Cal.App.4th at p. 670, fn. 5; *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 [stating that even if the motion was untimely, “the void judgment may be attacked by a separate action, without time limit.”]; *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228 [stating same].)

As such, Chan fails to meet his initial burden establishing that Zhong’s claim is barred by the doctrine of laches.

Accordingly, as all of Chan’s arguments for Summary Judgment or Summary Adjudication fail, the Motion is DENIED in all respects.

Conclusion and Order

Accordingly, Chan’s Motion for Summary Judgment or, in the alternative, for Summary Adjudication is **DENIED**.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 3

Case Name: *Velocity Investments, LLC v. John Madrid, et al.,
And Related Cross-Action*

Case No.: 23CV427141

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant/Cross-Complainant John Madrid (“Madrid”) moves the Court to compel Plaintiff/Cross-Defendant Velocity Investments, LLC (“Velocity”) to:

1. Provide complete, non-evasive, Code-Compliant responses to Madrid’s Request for Production of Documents and Electronically Stored Information, Set One (“RFP”) No. 2;
2. Produce all documents and ESI in its possession, custody or control that are responsive to Madrid’s RFP No. 2; and
3. Pay a monetary sanction in the amount of \$3,092.52 for Madrid’s reasonable attorneys’ fees and costs incurred for this Motion.²

Notice of Motion (the “Motion”) at 1:25-2:4 (filed: Oct. 31, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

This Motion is straightforward.

Putting aside for the moment the issue of sanctions, there are only two specific items that Madrid seeks by this Motion:

- for Velocity to produce “the purchase and sale agreement subject to the Court’s standard protective order” and
- for Velocity to “amend its response” to RFP No. 2 to comply with Code of Civil Procedure Section 2031.220 by stating that Velocity has complied in whole with RFP No. 2 and has produced all responsive documents in its possession, custody, or control.

² Madrid also here asks for an Order “authorizing the previously awarded sanctions in the amount of \$3,025, for a total sanction award of \$6,117.52.” Motion at 2:7-8. In this ruling the Court will address this point on the reasonable total amount of sanctions to be awarded now.

Madrid Memo. of Points & Authorities in Support of Motion at 5:3-6:3 (filed: Oct. 31, 2025).

RFP No. 2 was served on Velocity on February 7, 2024. Declaration of Matthew C. Salmonsens in Support of Motion (“Salmonsens Decl.”) at ¶ 3, Ex. A. After over a year of motion practice and countless pages of needlessly argumentative and hostile meet-and-confer-correspondence—which was an utterly unprofessional, inefficient, and counter-productive use of time and effort by all these counsel and parties—Velocity in its Second Amended Response to RFP No. 2 served on June 19, 2025, finally agreed “to produce the purchase and sale agreement subject to the Court’s standard protective order[.]” Salmonsens Decl. Ex. F at p. 4.

A Stipulated Protective Order was entered in this case on September 12, 2025. Salmonsens Decl. at ¶ 11. Despite Velocity’s promise to produce the purchase and sale agreement once the Protective Order was entered, when Velocity dragged its feet and did *not* produce this document for over a month and half, Madrid on October 31, 2025, was justified in filing this Motion to compel production of this document. The Court finds that Velocity had no excuse whatever not to promptly produce this document subject to the terms of the September 12, 2025 Protective Order, and Velocity’s failure to do so caused and justified this Motion to be filed on October 31, 2025.

Happily, albeit belatedly, two months later on December 30, 2025, Velocity did produce this purchase and sales agreement subject to the Protective Order. Declaration of June D. Coleman in Opposition to Motion (“Coleman Decl.”) at ¶ 5 (filed: June 11, 2026). As the sole document sought by this Motion has been produced, there is no document for the Court to compel Velocity to produce now.

Regarding Madrid’s request that Velocity further amend its response to RFP No. 2 to comply with Code of Civil Procedure Section 2031.220, without question Velocity had the duty to comply with Code of Civil Procedure Section 2031.220—and the Court’s review of all its multiple responses to RFP No. 2 (its *original* Response, its *First* Amended Response, and its *Second* Amended Response) shows that Velocity, so far, has failed to do so. Why it is has been so excruciatingly difficult for so long for Velocity to comply with Section 2031.220—which simply requires Velocity to state that it has complied with RFP No. 2 in whole or in part and that all responsive documents “that are in the possession, custody, or control” of Velocity have been included in the production—is a mystery to the undersigned Judge.

Again happily, albeit even *more* belatedly, Velocity for the first time in its Opposition papers to this Motion filed on June 11, 2026, has now promised to amend again its response to RFP No. 2 to comply with Code of Civil Procedure Section 2031.220. Coleman Decl. at ¶ 6. The Court will hold Velocity to fulfill that promise promptly. Accordingly, the Court **ORDERS** Velocity to serve on Madrid its Third Amended Response to RFP No. 2 that complies with Code of Civil Procedure Section 2031.220

within 10 days of today.³

Having now dealt with the document at issue and compelling a Code-Compliant Response to sole RFP (No. 2) at issue, the Court now turns to the sole remaining issue of the monetary sanction sought by Madrid against Velocity. To be precise, Madrid asks the Court to Order Velocity to pay a monetary sanction now of \$6,117.52, which equals attorneys' fees of \$6,050.00 (for *10 hours* of attorney work at \$605.00 per hour) plus costs of \$67.52 for the filing fee. Reply at 3:23-25; Salmonsens Decl. at ¶ 14. The *10 hours* of attorney work that Madrid now seeks comprises 5 hours of attorney work at \$605.00 that Madrid's lawyers spent on its first motion to compel a further response to RFP No. 2 (among other things) filed on August 6, 2024, which equals \$3,025.00,⁴ plus another 5 hours of attorney work at \$605.00 per hour for another \$3,025.00 for the pending Motion to compel a further response to RFP No. 2 now. So, doing the math, \$3,025.00 (attorneys' fees) + 3,025.00 (attorneys' fees) + 67.52 (filing fee) = \$6,117.52 sanction sought now.

In Opposition, Velocity argues that the \$6,117.52 monetary sanction should be "denied outright" because "the Motion is moot" because Velocity produced the requested document on December 30, 2025, and has promised to amend its Response to RFP No. 2 to make it Code-Compliant, or should be reduced because "the duplication of the previous motion to compel[.]" Opp. at 3:3-7 & 8:4-8.

The Court respectfully disagrees with Velocity that the Motion is moot. As the Court explained above, Madrid was justified in filing this Motion when it did on October 31, 2025 because Velocity dragged its feet by not producing the purchase and sale agreement subject to the Protective Order for over a month and a half after the Court entered that Protective Order on September 12, 2025. And the fact that Velocity made a partial subsequent cure by producing this requested document on December 30, 2025—two months after the Motion was filed on October 31, 2025—does not divest the Court of authority and discretion to award a monetary sanction here against Velocity for the amount that Madrid *reasonably* incurred for bringing these Motion(s) (first on August 6, 2024, and then again on October 31, 2025) to compel Velocity to produce this document

³ Both Velocity and attorney Coleman are now put on **NOTICE** that failure to comply with this **ORDER** within 10 days of today will result in escalating monetary sanctions against *both* Velocity and attorney Coleman as well as non-monetary sanctions against Velocity including issue, evidentiary, and terminating sanctions. So Velocity and attorney Coleman had best make sure that Velocity's Third Amended Response to RFP No. 2 complies with Code of Civil Procedure Section 2031.220—to the letter—within 10 days of today.

⁴ While Madrid argues as if Judge Hayashi awarded Madrid this amount of \$3,025.00 for 5 hours of attorney work at \$605.00 per hour for the first motion to compel, that is not so. Judge Hayashi did not award Madrid any specific monetary sanction but rather "reserved" ruling (and never did rule) on this issue. Hence, the undersigned Judge has full discretion to decide the amount of sanctions, including the *reasonable* amount of attorneys' fees, to award now.

and provide a further response to RFP No. 2. *See* Cal. Rules of Court, Rule 3.1348(a) (“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though . . . the requested discovery was provided to the moving party after the motion was filed.”); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390, at 408-409 (“once a party has failed to serve timely [discovery] responses, the trial court has the authority to hear a propounding party’s motion to compel responses . . . regardless of whether a party [later] serves an untimely response[,]” and going on to cite and quote Rule 3.1030(a), which in 2009 was renumbered as Rule 3.1348(a) *supra*, that the court may award sanctions even though the requested discovery responses were served after the motion was filed.)

In light of the plain text of Rule 3.1348(a), even though Velocity made a partial cure by producing the document requested *after* this October 31, 2025 Motion was filed, the Court retains authority and discretion under Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Velocity here: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” C.C.P. § 2023.030(a) (emphasis added). And, lest there be doubt, the Court reads Section 2023.010(d) to mean that failing to *timely* “respond . . . to an authorized method of discovery” like RFPs is a “misuse of the discovery process” (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

Hence, while the Court here may award Madrid a monetary sanction paid by Velocity for Madrid’s reasonable attorney’s fees and costs incurred for the Motion(s) to compel, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

As noted above, here Madrid seeks a \$6,117.52 sanction for attorneys’ fees of \$6,050.00 (for 10 hours of attorney work at \$605.00 per hour) plus costs of \$67.52 for the filing fee.

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$605.00 per hour is reasonable.

But the number of 10 hours of attorneys work for the straightforward motions to compel Velocity to produce a single document and amend its answer to a single RFP to make it Code-Compliant with Section 2031.220 is *unreasonable*. Particularly after Velocity’s attorney Coleman conceded in Velocity’s Second Amended Response of June 19, 2025 that it would produce the document at issue, there was not much that Madrid’s counsel had to do to *win* this Motion. Simply put, the Motion was a layup. All Madrid need to do to win was point out: (1) despite Velocity’s promise to produce the document at issue once the Protective Order was entered, Velocity failed to produce it for over a month and half after the Protective Order was entered; (2) Velocity’s Second Amended Response to RFP No. 2 did not comply with the plain text of Section 2031.220; and (3) California law requires Velocity to produce this responsive document and provide a Code-Compliant response to RFP No. 2. Those straightforward points reasonably should have

taken Madrid's lawyer one hour to brief and argue. And the Court will award Madrid another 2 hours of attorney time reasonably incurred for the time Madrid's lawyer had to wade through and analyze the lengthy but utterly unproductive meet and confer correspondence, objections, and opposition papers from Velocity's lawyer regarding the two motion(s) to compel. Accordingly, the Court finds that Madrid's attorneys should reasonably have **spent three hours total and combined** to win the Motion(s) to compel.

In addition, the Court awards Madrid as a part of this monetary sanction the \$67.52 filing fee sought by Madrid that the Court finds was a reasonable cost that Madrid occurred for filing this Motion.

So, **the total monetary sanction awarded now is \$1,882.52**, which equals \$1,815.00 in reasonable attorneys' fees (=3 hours total and combined at \$605.00 per hour) plus \$67.52 in reasonable cost incurred by Madrid's counsel for the motions to compel at issue.⁵ And Velocity will pay Madrid this \$1,882.52 sanction within 10 days of today.

Conclusion & Order

Accordingly, the Motion is **GRANTED In Part** as follows: The Court **ORDERS Velocity Investments, LLC within 10 days of today:**

- (1) to serve on Madrid its Third Amended Response to RFP No. 2 that complies with Code of Civil Procedure Section 2031.220; and
- (2) to pay Madrid \$1,882.52 as a monetary sanction for Madrid's reasonable attorneys' fees and costs here.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

⁵ Lest there be any confusion, in the broad exercise of its discretion the Court does not and will not award any additional amount of monetary sanction for the interrelated (and rather duplicative) first motion to compel filed on August 6, 2024. The Court rules that 3 hours of attorney time—total and combined—is reasonable and quite enough for these two entwined motions to compel.

Line 4

Case Name: *Raymond Tesconi v. Dark Run Ventures, Inc., et al.*

Case No.: 24CV435406

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant William Stuart (“Stuart”) moves under Code of Civil Procedure Sections 2023.010, 2023.030, and 2030.300(e) for a terminating sanction against Plaintiff Raymond Tesconi (“Tesconi”) for Tesconi’s failure to comply with the Court’s Order of August 29, 2025 to serve verified full, complete, Code-Compliant responses without objections to Special Interrogatories and to pay a monetary sanction of \$751.25 within 30 days of service of the August 29, 2025 Order. Notice of Motion (the “Motion”) at 2:6-22 (filed: Nov. 17, 2025). In addition, Stuart here seeks a monetary sanction of \$2,232.50 against Tesconi for Stuart’s reasonable attorneys’ fees and costs for this Motion.

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Chronology matters.

Indeed, as will be explained below, the chronology of events for this specific Motion is all that saves Tesconi from terminating sanctions right now.

The legal standard for imposing terminating sanctions for violation of a discovery Order is clear and undisputed by the parties. To impose terminating sanctions against Plaintiff, the Court must find all these three facts:

Fact No. 1: Plaintiff violated a Court Order for discovery;

Fact No. 2: That violation was willful;

Fact No. 3: Lesser sanctions like issue or evidentiary sanctions would not bring about compliance by Plaintiff with his discovery obligations.

R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal. App. 4th 486, 496-496; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992.

Regarding Fact No. 1, the Court finds as a matter of fact that Plaintiff in this case has violated multiple Court Orders for discovery—including but not limited to the August

29, 2025 Order that is the subject of this Motion⁶ —by failing to provide timely responses as Ordered to five sets of discovery requests served on him in this case as of November 17, 2025 when the current Motion was filed (Def. Memo. of Points & Authorities In Support of Motion at 6:3-7). Plaintiff does not dispute this point, but rather tries to deflect from it by saying he’s been ill. So Fact No. 1 for the Court to impose terminating sanctions is found here.

Regarding Fact No. 3, whether imposition of lesser sanctions like issue or evidentiary sanctions would bring about compliance with Plaintiff with his discovery obligations, the Court finds as a matter of fact that, unfortunately, lesser sanctions would *not* bring about Plaintiff’s compliance in this case. The Court’s careful review of the voluminous record of multiple motions to compel discovery that Defendant has been forced to bring in this case, as well as the Court’s repeated Orders granting those motions to compel against Tesconi, shows beyond any doubt that because Tesconi has failed to respond to such a broad range of authorized discovery requests on every conceivable issue in the case *and* on every conceivable item of evidence in the case, that if the Court were now to impose issue or evidentiary sanctions against Tesconi for his multiple, comprehensive, repeated discovery violations, it would not bring about his compliance—*because there would be nothing left of the case*. There would be no issues left to litigate; there would be no evidence that Tesconi could present to the jury at trial. So, given these extreme circumstances, imposing issue or evidentiary sanctions would *not* bring about Tesconi’s compliance but would rather end the case. So Fact No. 3 for the Court to impose terminating sanctions is found here.

Which leaves Fact No. 2—whether Tesconi’s violation of the Court Order was willful—which California law *requires* the Court to find to impose to impose *terminating* sanctions here.⁷ So the precise issue of whether the Court will impose terminating sanctions for this Motion hinges on this point: does the Court find now as a matter of fact that Tesconi’s violation of the specific discovery Order at issue here of August 29, 2025 (see fn. 1 above) was willful? In considering this pivotal issue, it is instructive to consider this Court’s reasoning on this same point in the Court’s Order on (yet another) motion for terminating sanctions brought by Defendant against Tesconi, an Order which the Court filed, issued, and served on Tesconi earlier this year on February 11, 2026.

The chronology of events regarding *that* motion which the Court’s February 11, 2026 Order resolved are important. That motion was filed on November 18, 2025 (a day after the pending Motion was filed on November 17, 2025), and concerned a violation by Tesconi of the Court’s October 15, 2025 Order compelling discovery. Of practical

⁶ See Notice of Motion at 2:12-18 (“The motion is based on the fact that the Court issued an order on August 29, 2025 for Tesconi to serve a verified, full, and code compliant responses without objections to the special interrogatories that had been served on him and . . . Tesconi has disobeyed the Court’s ruling[.]”)

⁷ *R.S. Creative, Inc.*, 75 Cal. App. 4th at 495, *supra* (terminating sanctions for violating a discovery Order *require* a finding that the violation was willful).

significance was the fact that the October 15, 2025 Order was the first discovery Order issued by the undersigned Judge after he was assigned as Civil Case Manager over this case that Tesconi violated—which in the eyes of this Judge logically affects the basis of Court’s knowledge, experience, and ability to reasonably *infer* whether the violation of that Order was *willful* to impose terminating sanctions. So in its February 11, 2026 Order, the Court analyzed this key point on *when the Court can and will reasonably infer* that Tesconi *willfully* violated a Court Order as follows:

Defendant accurately points out that throughout 2025 it was forced to bring four separate discovery motions against [Tesconi], and was also forced to litigate multiple meritless motions for reconsideration brought by [Tesconi] of the Orders granting [the discovery motions.] Defendant’s position, which has merit, [is that] Plaintiff’s ***willful*** failure to comply with the October 15, 2025 Order *may be reasonably inferred* from his pattern and practice of serial discovery violations in this case.

... [T]he Court, in the broad exercise of its discretion, will give [Tesconi] this *one chance* before imposing terminating sanctions in this case. After all, this is the first discovery order of the undersigned Judge that Plaintiff violated. It will be the last. One more violation by Plaintiff and this case is over.

After being given this last full and fair chance to comply with all discovery obligations and orders, *the next time* Plaintiff violates them the Court *can and will infer that such violation is willful*. And the unavoidable result will be terminating sanctions.

Order Granting In Part & Denying In Part Terminating Sanctions (filed and served: Feb. 11, 2026). As the Court there set a clear red line putting Tesconi on notice that terminating sanctions would result the next time he violates a discovery order after this February 11, 2026 Order, it is fair and logical for the Court to infer that Tesconi acts *willfully* if he violates a discovery Order after this warning.⁸ In other words, if he violates a discovery order *after* this clear February 11, 2026 Order, Tesconi will knowingly and voluntarily waive by his own willful misconduct his right to trial by jury in this case. One *more* violation and this case is over.

Applying this analytical framework to the present Motion is straightforward. The discovery Order that this specific Motion (filed on November 17, 2025) concerns was issued on August 29, 2025, and served by Defendant on Tesconi on September 10, 2025. Declaration of Joyce K. Lau in Support of Motion at ¶¶ 6-7 (filed: Nov. 17, 2025). As that

⁸ Mindful that finding a willful violation of a Court Order will have the practical result of ending Tesconi’s case before trial, the Court in crafting this rule of when it can and will infer that Tesconi’s violation is willful here carefully balanced important interests that our judicial system has in trial by jury *and* in compliance with the Court’s Orders.

Order required Tesconi to provide discovery responses within 30 days of service, *id.* at ¶ 8, the alleged violation occurred on *October 10, 2025*—months *before* the February 11, 2026 Order set the red line as explained above, *not after*. Hence, given this chronology and the plain text of the Court’s February 11, 2026 Order on when it can and will infer that Tesconi acted willfully in violating a discovery order, the Court does *not* find that Tesconi’s violation of the August 29, 2025 Order (the precise subject of this Motion) was willful. This violation happened before the Court set down the clear red line. Chronology matters.

As the Court has not found the required Fact No. 2 that Tesconi’s violation of the August 29, 2025 Order was willful, the Court respectfully **DENIES** this Motion insofar as it requests terminating sanctions now for violation of the August 29, 2025 discovery Order.

That said, the Court is keenly aware that Defendant has brought yet another Motion for Terminating Sanctions against Tesconi that is noticed and set for hearing on November 20, 2026. Notably, Tesconi is alleged there to violate a discovery Order signed, filed, and served on Tesconi on *February 18, 2026*—*after* the *February 11, 2026* Order set down the clear red line discussed above. While the Court does not now make any findings of fact or rulings of law on that motion noticed for November 20, 2026, as it is not yet fully briefed, chronology will matter there too.

Regarding Defendant’s additional request in the pending Motion noticed for today for monetary sanctions in the amount of \$2,232.50, that request is **GRANTED**. This Court has discretion and authority to impose a monetary sanction in this case now against Tesconi for his misuse of the discovery process for violating the Court’s discovery Order of August 29, 2025. More specifically, the Court has wide discretion to award reasonable attorneys’ fees and costs incurred by Defendant’s counsel for this Motion. Here, Defendant seeks \$2,232.50, comprising of 5.5 hours of attorney time at \$395.00 per hour, plus a \$60.00 filing fee. The Court finds that the hourly rate sought of \$395.00 is reasonable considering the relevant market and nature of this motion, that 5.5 hours of attorney time is reasonable for the work incurred by Defendant to bring and argue this Motion, and that the \$60.00 filing fee is a reasonable cost.

Hence, as the amount of \$2,332.50 sought for a monetary sanction for Defendant’s attorneys’ fees and costs is reasonable, the Court **ORDERS** Tesconi to pay \$2,232.50 within 30 days of today to The Fuller Law Firm, P.C. Client Trust Account, delivered to 60 No. Keeble Avenue, San Jose, CA 95126.

Conclusion and Order

For the reasons explained above, Defendant’s Motion is **Granted In Part and Denied In Part** as follows. Specifically, the Court **ORDERS**:

- Defendant’s Motion for terminating sanctions for Tesconi’s violation of the Court’s August 29, 2025 discovery order is **DENIED**; and

- Defendant's Motion for monetary sanctions in the amount of \$2,332.50 is **GRANTED**. More specifically, the Court **ORDERS** Tesconi to pay \$2,232.50 within 30 days of today to The Fuller Law Firm, P.C. Client Trust Account, delivered to 60 No. Keeble Avenue, San Jose, CA 95126.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 5

Case Name: *Scott Johnson v. Blvd Coffee Inc., et al.*

Case No.: 25CV457671

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Scott Johnson (“Plaintiff”) moves for attorneys’ fees and costs in the amount of \$39,638.60, reflecting a 1.25 multiplier on \$29,275.00 in attorneys’ fees and \$2,435.88 in costs, pursuant to the Judgment entered and the agreement of the parties. Notice of Motion (the “Motion”) at 3:3-7 (filed: Nov. 10, 2025); Reply Declaration of Dennis Price In Support of Motion (“Price Reply Decl.”) at ¶ 6 (filed: June 15, 2026).⁹

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolving this Motion is straightforward.

On January 28, 2025, Plaintiff filed his Complaint against Defendant Blvd Coffee Inc., a coffee shop in Los Gatos, California, alleging that this small coffee shop is liable for violations of the Americans with Disabilities Act (“ADA”), e.g., that its different types of dining tables are not ADA compliant. Complaint at ¶¶ 27, 57 (filed: Jan. 28, 2025).

A review of the case docket and record shows that between March 7, 2025 and April 25, 2025, the parties briefed but did not argue Defendant’s motion to quash service of summons because this motion was withdrawn as moot as Defendant obtained leave to file and did file its Answer on May 6, 2006. *See* April 25, 2025 Minute Order (motion to quash hearing moot if Defendant has filed its responsive pleading on or before May 7, 2025); Answer (filed: May 6, 2025).

A bit over a month after Defendant filed its Answer on May 6, 2026, Plaintiff served a C.C.P. § 998 Offer of Judgment on Defendant, which is dated and signed by Plaintiff’s counsel Christopher A. Seabock on June 18, 2025. Declaration of Dennis Price in Support of Motion (“Original Price Decl.”) (filed: Nov 10, 2025) at Ex. 6 (executed

⁹ While Plaintiff in his original moving papers here requested a total award of fees and costs of \$39,076.10, reflecting a 1.25 multiplier on \$28,825.00 in fees and \$2,435.88 in costs, in his Reply papers he increased one entry from 4.00 hours of attorney time to prepare the Reply papers to 4.60 hours to prepare the Reply papers (at \$750 per hour). Price Reply Decl. at ¶ 6. Hence, the total award of fees and costs requested increased from \$39,076.10 to \$39,638.60.

Section 998 Offer of Judgment).

A month after that, on July 18, 2025, counsel for Defendant J. William Peironnet signed and accepted the C.C.P. § 998 Offer of Judgment on behalf of Defendant. *Id.*, Ex. 6.

Apart from reasonably incurred attorneys' fees and costs, the total amount of the settlement that Defendant agreed to pay Plaintiff is: \$3,999.00. *Id.*, Ex. 6 ¶ 2(a).

Under the plain text of the C.C.P. § 998 Offer of Judgment that Defendant accepted on July 18, 2025, Plaintiff is entitled "to recovery of all *reasonably* incurred fees and costs, in an amount to be determined by notice motion to the Court[.]" *Id.*, Ex. 6 ¶ 2(b) (emphasis added). Defendant agreed to that, so Plaintiff is entitled to that.

So while Plaintiff is entitled to recover all reasonably incurred fees and costs in this case from Defendant, what is reasonable in this case is within the broad discretion of this Court to decide now in this Motion.

In this Motion to recover its attorneys' fees and costs, Plaintiffs requests a total award of \$39,638.60, reflecting a 1.25 multiplier on \$29,275.00 in attorneys' fees and \$2,435.88 in costs. Motion at 3:3-7; Price Reply Decl. at ¶ 6.

More specifically, as the Court can see by its careful line-by-line review of Plaintiff's Billing Records for this case submitted as Exhibit 1 to the Original Price Decl., as increased by 0.6 hours at \$750.00 in the Reply Price Decl. at ¶ 6, Plaintiff is requesting 46.6 hours of attorney time at a billable rate that ranges from \$750.00 an hour for attorney Price, to \$700 per hour for attorneys Christopher Seabock and Amanda Seabock, to \$550.00 per hour for attorney Sara Johnson.

Considering the relevant market that these lawyers practice in ADA litigation in California and the fact that attorney Christopher Seabock himself did the vast majority of assignments listed on the billing records in this case (see Original Price Decl., Ex. 1, Billing Records), the Court finds that the \$700 per hour billable rate requested for attorney Christopher Seabock is reasonable, and indeed that \$700 per hour for Plaintiff's lawyers is reasonable to award across the board for the *reasonable* number of billable hours that the Court decides to award in this case. In other words, the Court will calculate its award of fees in this case at a rate of \$700.00 per hour, which the Court in the exercise of its discretion finds to be reasonable here given these facts and circumstances.

But the Court finds that the number of 46.6 hours sought by Plaintiff's counsel is unreasonable given the work that Plaintiff's counsel reasonably needed to do here and given the size of the amount of the recovery in this settlement of \$3,999.00. To put this in perspective, Plaintiff is asking for nearly *10 times* in attorneys' fees and costs—\$39,638.60—what Plaintiff recovered in this settlement: \$3,999.00. In this case against a small coffee shop, that 10-times-multiple is not reasonable.

Moreover, the Court's careful line-by-line review of the billing records submitted in

this case show a level of padding and unnecessarily-billed hours that shock the conscience of this Court. For instance, Defendant filed a motion to quash on March 7, 2025 that was withdrawn on April 25, 2025. While Plaintiff's attorneys no doubt had to spend some time opposing that motion to quash, the number of hours that they billed between March 7 and April 25, 2025—of 18.6 hours over 20 separate days (!)—is absurd. It should *reasonably* have taken experienced Plaintiff's counsel 1.0 hour to oppose a motion to quash that was never argued because it was withdrawn as moot.

Likewise, the 5.2 hours that Plaintiff's counsel billed between December 3, 2024 and January 28, 2025 to draft and file the Complaint on January 28, 2025 is not reasonable. As an experienced ADA litigation firm, Plaintiff's counsel here did not have to reinvent the wheel. At most, it should have taken Plaintiff's counsel 1.0 hour to draft and file this Complaint by plugging in the facts of Plaintiff's case to this standard ADA Complaint.

Regarding work billed by Plaintiff's counsel between when Defendant's answer was filed on May 8, 2025, and the date Defendant executed and accepted the Section 998 Offer on July 18, 2025, the Court will award another 2.0 hours of reasonable attorney work. Plaintiff counsel did conduct some modest (though not novel or time consuming at all) written discovery during this date range. But for the multiple repetitive billing entries during this date range like “revising CMC statement, review docket,” the Court is not going to award any attorney time for that as these amounts sought were for attorney time *not* reasonably incurred.

And after Defendant executed the Section 998 Offer on July 18, 2025, there frankly was not much more for Plaintiff's counsel to do other than prepare this attorneys' fees and costs Motion, which, as an experienced ADA litigation firm, Plaintiff's counsel could reasonably generate—i.e., by calling up and inserting its billable records and standard exhibits in this standard Motion that it filed about the reasonableness of billable hours and rates sought, exactly as it did—in 1.5 hours.

So the total number of attorney hours that the Court awards here as reasonably expended is *not* 46.6 hours but 5.5 hours (1.0 + 1.0 + 2.0 + 1.5). As the undersigned Judge before taking the bench practiced more than 20 years in civil litigation—the first decade representing Plaintiffs and submitting motions for attorneys' fees just like this one—the Court is quite certain that 5.5 hours at \$700 per hour is a reasonable number of hours and a reasonable hourly rate to award considering the attorney work that needed to be done in this case and in light of modest amount of the recovery achieved by the attorney work done here—\$3,999.00.

As the Court rules that Plaintiff is entitled to a reasonable amount of attorneys' fees under the executed Section 998 agreement in this case, and that \$700 per hour is a reasonable billable rate and that 5.5 is a reasonable number of hours worked in this case, the award of attorneys' fees in this case is \$3,850.00 (= \$700 per hour x 5.5 hours).

Regarding the 1.25 multiplier on the lodestar that Plaintiff requests in this case, the Court in the broad exercise of its discretion does not award any multiplier in this case

because to do so would be unreasonable under these facts and circumstances. Even Plaintiff concedes that “no multiplier deviation is requested or necessary, except to account for delay in payment.” Motion at 11:1:1-2. And Plaintiff requests a 1.25 multiplier not because of any complexity of the attorney work here or because it claims that the \$3,999.00 settlement was somehow exceptional (it’s not), but rather because “[t]he reality of finance is that funds that are received later are worth less than those that are received timely.” Motion at 11:18-19. Assuming without deciding that this realities-of-finance argument were a sound basis on which the Court could award a multiplier, the Court declines to do so here. By accepting the Section 998 Offer on July 18, 2025, within 30 days of it being offered on June 18, 2026, Defendant caused no undue delay here that warrants the award of any multiplier on top of the lodestar.

That said, in addition to their reasonable attorneys’ fees, Plaintiff is also entitled under the plain terms of the executed Section 998 agreement to his reasonable costs incurred for this case. Original Price Declaration Ex. 6 ¶ 2(b).

For costs, Plaintiff requests \$2,435.88. Motion at 3:7; Original Price Decl. Ex 1 (Billing Records at p. 12 of 12, listing “\$2,435.88” as “Expenses Subtotal”).

However, Plaintiff admits that out of that \$2,435.88, the \$1,000 cost entry on October 7, 2025, the “high-frequency filing fee” on its Billing Records “has not yet been paid.” Motion at p. 12 fn. 2. The Court finds that it would be unreasonable to make Defendant pay Plaintiff this \$1,000.00 high-frequency filing for two reasons.

First, it is unreasonable for the Court award Defendant a cost that Defendant has not paid.

Second, and more importantly, there is no reason in logic or law that Defendant should incur a \$1,000.00 fee that Plaintiff may have pay because Plaintiff files a high frequency of civil actions in California. Regardless of whether Plaintiff has “filed perhaps thousands of such actions” as Defendant argues in its Opposition papers (Opp. at p. 1), Defendant did nothing to cause—in fact or proximately—Plaintiff to file a single other lawsuit besides this one. As Defendant did not cause this \$1,000 cost, it would be unreasonable for the Court to make Defendant pay Plaintiff for this \$1,000 cost. So in the broad exercise of its discretion, the Court will not award Plaintiff as part of its costs this \$1,000.00 high-frequency filing fee because to make Defendant pay for this cost that Defendant did not cause would be unreasonable.

Moreover, after reviewing each line of the costs claimed in the Billing Records (Original Price Decl. Ex 1), the Court also does *not* award the \$156.70 in costs for “pull[ing] DC prior ADA defense” billed on May 22, 2026 or the \$24.94 for “mid-litigation investigation” billed on May 27, 2025, as the Court finds that those costs were not reasonably incurred for this case.

Putting aside the \$1,000.00 high frequency filing fee, the \$156.70 prior ADA defense “pulling,” and the \$24.94 mid-litigation investigation, the Court finds that the remaining expenses listed on the Billing Records *are* reasonable costs in this case.

Accordingly, the Court awards Plaintiff reasonable costs of \$1,254.24 in this case.

In total, the Court awards Plaintiff \$5,104.24 in reasonable attorneys' fees and costs in this case, comprising \$3,850.00 in reasonable attorneys' fees and \$1,254.24 in reasonable costs in this case. And Defendant will pay Plaintiff that total amount of \$5,104.24 within 60 days of today.¹⁰

Order and Conclusion

For the reasons set forth above, Plaintiff's Motion is **GRANTED In Part** as follows. Specifically, Defendant Blvd Coffee Inc. is **ORDERED** within 60 days of today to pay Plaintiff Scott Johnson \$5,104.24 for Plaintiff's reasonable attorneys' fees and costs incurred in this case.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

¹⁰ The Court is aware that the text of the executed and accepted Section 998 offer states that "any fees awarded by the Court shall be paid within 30 days of that Order, *unless the Order specifies otherwise.*" Original Price Decl. Ex. 6 ¶ 2(c) (emphasis added). The Court is specifying otherwise now, as a matter of fairness considering the modest means of this small coffee shop that is Defendant (Opp. at pp. 5, 13), by Ordering the total award to be paid within 60 days of today.

Line 6

Case Name: *Hai Bui v. Toyota Motor Sales, U.S.A., Inc., et al.*

Case No.: 25CV462169

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Toyota Motor Sales, U.S.A., Inc. (“TMS” or “Defendant”) demurs to the Sixth Cause of Action for Fraudulent Inducement-Concealment of the First Amended Complaint (“FAC”) of Plaintiff Hai Bui (“Plaintiff”) under Code of Civil Procedure Sections 430.10(e) & (f). Notice of Demurrer (the “Demurrer”) at 1:5-17 (filed: Oct. 14, 2025).

Defendant also moves to strike the punitive damages claim from the FAC of Plaintiff under Code of Civil Procedure Sections 435 and 436 on the ground that Plaintiff’s punitive damages claim is improper under sections 435 and 436 because the FAC fails to allege sufficient facts capable of supporting a punitive damages award. Notice of Motion (the “Motion to Strike”) at 1:4-8 (filed: Oct. 20, 2025).

The Demurrer and Motion to Strike came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff brings this Lemon Law action against Defendants Toyota Motor Sales, USA, Inc. (“TMS”) and Lexus of Stevens Creek (“Lexus”).

According to the facts alleged in the FAC, on November 12, 2021, Plaintiff entered into a warranty contract with TMS regarding a Lexus vehicle (“Subject Vehicle”) that was manufactured and/or distributed by TMS. (First Amended Complaint (“FAC”), ¶ 7; Exhibit A [relevant warranty].) Prior to purchasing the vehicle, Plaintiff reviewed TMS’s marketing materials, vehicle-specific window sticker, and took the Subject Vehicle for a test drive. (*Id.* at ¶ 10.) Plaintiff was never advised of any defects with the Subject Vehicle’s engine but did experience several defects including failure to start, abnormal rattling, and excess and/or unexpected battery drain. (*Id.* at ¶ 11.)

Plaintiff presented the Subject Vehicle to TMS’s authorized repair facilities on multiple occasions where a TMS technician inspected the vehicle and then represented that it had been repaired and/or was working as designed. (FAC, ¶ 12.) Despite these representations, Plaintiff continued to experience unsafe defects. (FAC, ¶ 13.)

On March 28, 2025, Plaintiff filed the initial Complaint. On August 6, 2025, Plaintiff filed the operative FAC, asserting the following causes of action:

- 1) Violation of Civil Code section 1793.2, subdivision (d);
- 2) Violation of Civil Code section 1793.2, subdivision (b);
- 3) Violation of Civil Code section 1793.2, subdivision (a)(3);
- 4) Breach of the Implied Warranty of Merchantability;
- 5) Negligent Repair; and
- 6) Fraudulent Inducement – Concealment.

On October 14, 2025, TMS filed the Demurrer to the FAC's sixth cause of action. Plaintiff opposes the Demurrer, and TMS filed a reply.

On October 20, 2025, TMS filed the Motion to Strike Plaintiff's claim for punitive damages from the FAC. This Motion to Strike is also opposed and TMS filed a reply.

The Court addresses the Demurrer and the Motion to Strike now.

I. Analysis of TMS's Demurrer

TMS demurs generally to the sixth cause of action on the ground it fails to state sufficient facts to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e).

a. Legal Standard on Demurrer

In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) "A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

b. Analysis of the Demurrer

In support of its demurrer, TMS argues: 1) Plaintiff fails to allege an actionable omission or concealment and fails to plead the fraud claim with the requisite specificity; and 2) the fraudulent concealment claim is barred by the economic loss doctrine. While the notice of demurrer indicates that it is also being made on the grounds of uncertainty, the supporting memorandum of points and authorities is completely silent as to that ground, so the Court declines to address the unsupported uncertainty ground.

i. The FAC pleads facts sufficient to constitute the Sixth Cause of Action for Fraudulent Inducement-Concealment.

Plaintiff's Sixth Cause of Action of the FAC is fraudulent inducement by concealment. "The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to

the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if the plaintiff had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

“With respect to concealment, there are four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. The latter three circumstances presuppose the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. This relationship has been described as a transaction, such as that between seller and buyer . . . or parties entering into any kind of contractual arrangement.” (*Id.* at pp. 349-350 [internal quotations and citations omitted]; *LiMandri v. Judkins* (1997) 52 Cal. App. 4th 326, 336.)

As a general rule, each element in a fraud cause of action must be pleaded with specificity. (See *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) That said, the specific pleading requirement can be significantly relaxed in the case of fraud by concealment because, as one court has explained, “[h]ow does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (*Alfaro v. Community Housing Imp. System & Planning Ass’n., Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

TMS argues that Plaintiff has failed to plead the essential element of a duty to disclose with the requisite specificity for a fraud claim. (Motion, p. 6:21-24.) The demurrer conclusively asserts that there are zero allegations supporting a fiduciary relationship between TMS and Plaintiff and thus, Plaintiff cannot allege a duty to disclose. (*Id.* at p. 7:3-5.)

“No liability for concealment exists unless there is a duty to disclose.” (*Nissan Motor Acceptance Cases* (2021) 63 Cal.App.5th 793, 826.) “Where material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is *some relationship* between the parties which gives rise to a duty to disclose such known facts.” (*Ibid.* [emphasis original, internal citations and quotations omitted].) While a fiduciary relationship does create a duty to disclose, other relationships that arise because of a transaction may also impose disclosure duties. (*Ibid.*)

On similar facts, in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 832 (*Nissan*), the trial court sustained, without leave to amend, defendant Nissan’s demurrer to the fraud claim, where the plaintiffs alleged: that Nissan and its agents intentionally concealed and failed to disclose facts relating to a defective transmission, Nissan had exclusive knowledge of the defect and did not disclose that to plaintiffs in an effort to sell the vehicle, and if plaintiffs had known of the defects they would not have purchased the vehicle. (*Id.* at p. 834.) The Court of Appeal disagreed, holding that at the

pleading stage, plaintiffs' allegations that they bought the car from a Nissan dealership, Nissan backed the car with an express warranty, and Nissan's authorized dealerships were agents for purposes of the sale of Nissan vehicles to consumers, were sufficient to state a fraudulent inducement by concealment claim. (*Id.* at p. 844 ["In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects."].)

Here, the FAC alleges that TMS manufactured and/or distributed the Subject Vehicle, Plaintiff entered into a warranty contract with TMS, and the dealership where Plaintiff purchased the vehicle was authorized by TMS. (FAC, ¶¶ 7, 9.) TMS concealed a known defect that causes unsafe conditions. (*Id.* at ¶ 59.) Further, Plaintiff presented the Subject Vehicle for repairs to TMS authorized repair facilities with TMS technicians. (*Id.* at ¶ 12.) TMS and its agents actively concealed the engine defect and failed to disclose this to Plaintiff at the time of purchase or thereafter. (*Id.* at ¶ 62.) These allegations are sufficient to state a duty to disclose.

TMS next argues the allegations are insufficient because Plaintiff does not adequately allege it had pre-sale knowledge of the alleged defect. (Motion, p. 7:6-7.) This argument is unpersuasive. As noted above, the specificity requirement for a fraud by concealment claim is significantly relaxed and here, Plaintiff alleges TMS knew about the defect through internal data, pre-releasing testing data, early consumer complaints, dealership repair orders, testing conducted in response to complaints, and other internal sources of information possessed exclusively by TMS and its agents. (FAC, ¶ 62; See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217 [less specificity is required when it appears from the nature of the allegations the defendant necessarily possesses full information concerning the facts of the controversy][superseded by statute on other grounds].) These allegations are sufficient; they are well pleaded. Similarly, TMS's next two arguments are likewise not well-taken as the FAC adequately pleads active concealment and TMS's disclosures. (See FAC, ¶¶ 10, 12-13, 62, 63.)

Accordingly, the Demurrer to the sixth cause of action on the ground it fails to allege sufficient facts to constitute a cause of action is **OVERRULED**.

ii. The Sixth Cause of Action is Not Barred by the Economic Loss Rule.

TMS next asserts that Plaintiff fails to plead that it violated a duty from a tort obligation rather than from contract and the claim therefore fails under the economic loss rule. (Motion, p. 10:20-22.)

The economic loss rule provides that "where a purchaser's expectations in a sale are frustrated because the product he brought is not working properly, his remedy is said to be in contract alone, for he has suffered only economic losses." (*Robinson Helicopter Company v. Dana Corporation* (2004) 34 Cal.4th 979, 988 (*Robinson*).) But "the economic loss rule does not apply to limit recovery for intentional tort claims like fraud." (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.) More specifically,

the economic loss rule does not apply to fraudulent inducement of a contract. (*Robinson, supra*, 34 Cal.4th at pp. 989-990; *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 328-329 [“The analysis [in *Robinson*] suggested that fraud *itself* is immune from application of the economic loss rule because fraud is particularly blameworthy and therefore unlike both contract causes of action *and* products liability causes of action.”] [internal citation omitted, emphasis in original].) Tort damages have been permitted in contract cases where a contract is fraudulently induced and where “the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm.” (*Robinson, supra*, at p. 989-990.)

The *Nissan* Court explained that the independence from the contract, detailed in *Robinson*, is present in the case of fraudulent inducement, “because a defendant’s conduct in fraudulently inducing someone to enter a contract is separate from the defendant’s later breach of the contract or warranty provisions that were agreed to.” (*Nissan, supra*, 84 Cal.App.5th at p. 841 [stating also “plaintiffs’ fraudulent inducement claim alleges presale conduct by Nissan (concealment) that is distinct from Nissan’s alleged subsequent conduct in breaching its warranty obligations”].) The same is true in this case where the FAC alleges both presale conduct and subsequent conduct breaching the express warranty. At the pleading stage, the Court does not find that the economic loss rule bars Plaintiff’s claim.

Accordingly, the demurrer on the ground the sixth cause of action is barred by the economic loss rule is **OVERRULED**.

II. TMS’s Motion to Strike the Punitive Damages Claim

TMS moves to strike Plaintiff’s punitive damages claim as improper under Code of Civil Procedure sections 435 and 435 because the FAC fails to allege sufficient facts capable of supporting a punitive damages award. (Motion to Strike, p. 1:13-20.)

a. Legal Standard on Motion to Strike

A court may strike out any irrelevant, false, or improper matter asserted in a pleading or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a).) The grounds for a motion to strike must appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) In ruling on a motion to strike, a court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Clauson v. Superior Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

b. Analysis of the Motion to Strike

“[T]o state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294.” (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th at p. 63.)

Under Civil Code Section 3294(a), punitive damages are available where “defendant has been guilty of oppression, *fraud*, or malice[.]” (Civil Code § 3294(a) (emphasis added)). In this context, fraud means “an intentional misrepresentation, deceit, or concealment of a material fact known to defendant with the intention of depriving plaintiff of property or legal rights or otherwise causing injury.” (*Id.* at subd. (c)(3).)

Here, while Plaintiff’s request for punitive damages is not strictly tied to any specific cause of action, Plaintiff’s Sixth Cause of Action in the FAC for fraud remains alive and well after the Court overruled Defendant’s Demurrer above. So as Plaintiff’s cause of action for fraud in the FAC remains viable, so does Plaintiff’s request for punitive damages in the prayer of the FAC. (See *Stevens v. Super. Ct.* (1986) 180 Cal.App.3d 605, 610 [properly pleaded fraud claim is sufficient by itself to support a request for punitive damages].)

Accordingly, Defendant’s Motion to Strike is **DENIED**.

III. Conclusion and Order

For all the reasons explained above, Defendant’s Demurrer is **OVERRULED** and Defendant’s Motion to Strike is **DENIED**.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Hai Bui v. Toyota Motor Sales, U.S.A., Inc., et al.*

Case No.: 25CV462169

See Line 6 above for complete tentative ruling on both the Demurrer and Motion to Strike.

Line 8

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*
And Related Cross-Action

Case No.: 25CV468257

See **ORDER** above (Cross-Defendants' Motion to Strike the punitive damages claim from the First Amended Cross-Complaint is **STAYED** pending completion of appeal).

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 9

Case Name: *Argent Investments LLC v. Ye Rang Choi, et al.*
And Related Cross-Action

Case No.: 25CV468257

See **ORDER** above (Cross-Defendants' Demurrer to the First Amended Cross-Complaint is **STAYED** pending completion of appeal).

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Case Name: *JPMorgan Chase Bank, N.A. v. Don Nguyen*

Case No.: 25CV476443

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Don Nguyen (“Defendant”) moves to quash service of the Summons on the grounds that service of the summons was not properly effected upon Defendant, and therefore the Court lacks personal jurisdiction over Defendant. Notice of Motion (the “Motion”) at p. 2¹¹ (filed: Oct. 29, 2025).

The Motion came on for hearing on June 24, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Background

Plaintiff JPMorgan Chase Bank, N.A. (“Plaintiff”) brings this civil action against defendant Don Nguyen (“Defendant”). On September 29, 2025, Plaintiff filed a Complaint against Defendant seeking damages of \$103,717.99 for unpaid payments on a credit account. On October 6, 2025, Plaintiff filed a Proof of Service of Summons of the Complaint.

Defendant’s Motion to quash service of Summons, filed on October 29, 2025, is now before the court.

On June 8, 2026, Plaintiff timely filed an Opposition to the Motion.

Legal Standard on Motion to Quash for Service of Summons

Code of Civil Procedure Section 418.10, subdivision (a)(1) authorizes Defendant to file a motion to quash service of Summons “on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “[A] motion to quash under section 418.10, subdivision (a)(1) is a limited procedural tool to contest personal jurisdiction over the defendant where the statutory requirements for service of process are not fulfilled.” (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.) A registered process server’s declaration of service creates a rebuttable presumption that service was proper.

¹¹ The Court notes that the Motion filed by this pro se Defendant was not filed on proper pleading paper and does not contain line numbers, so the Court can cite only to page numbers of Defendant’s Motion papers here.

(*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Analysis of the Motion to Quash

California Code of Civil Procedure section 415.10 establishes that a “Summons may be served by personal delivery of a copy of the Summons and of the complaint to the person to be served.” (Code Civ. Proc., § 415.10.) Service by personal delivery is deemed complete at the time of such delivery. (*Ibid.*) The date upon which personal delivery is made must be on the Summons when it is delivered. (*Ibid.*) A Proof of Service by personal delivery must include an affidavit of the person making the service with the name of the person to whom the Summons was delivered, the time, place, and manner of service, and facts supporting the validity of service. (Code Civ. Proc., § 417.10 subd. (a).) All proofs of service must be made on a Judicial Council form. (Code Civ. Proc., § 417.10 subd. (f).) A Proof of Service completed by a registered process server or an independent contractor must list the county in which the person is registered and the registration number assigned to the person. (Code Civ. Proc., § 417.40.)

Here, the Proof of Service of Summons that Plaintiff filed on October 6, 2025, complies with all statutory requirements. The Proof of Service of Summons filed by Plaintiff was completed and signed by a registered process server and states the following: a “Summons; Complaint-Contract; Statement of Location/Venue; Civil Case Cover Sheet; Civil Lawsuit Notice; Alternative Dispute Resolution (ADR) Packet” was served on Don Nguyen by personal service at 2885 Urzi Court, San Jose, CA 95135-2030 on October 5, 2025 at 5:15 PM. (Proof of Service of Summons No. 25CV476443) The Proof of Service of Summons further states: “I delivered the documents to DON NGUYEN with identity confirmed by subject saying yes when named. The individual accepted service with direct delivery. The individual appeared to be a black-haired Asian male contact over 65 years of age, 5’6”-5’8” tall and weighing 140-160 lbs.” (*Ibid.*) Moreover, the Proof of Service of Summons includes the process server’s county of registration and registration number.

In his Motion papers, Defendant has not provided this court with any evidence or any reason to overcome the presumption that service was proper here. Defendant’s Declaration included in the Motion to quash states his position that he was never personally served and the person who was allegedly served was not him, a family member, or someone authorized to accept service on his behalf. The only evidence Defendant presents in support of this position is his claim that he “did not reside at [address listed on Proof of Service] (*sic*) at the time of alleged service, nor did I authorize anyone there to accept service for me.”

Defendant’s position is belied by the entwined facts that:

- The address listed on the Proof of Service is *2885 Urzi Court, San Jose, CA*.
- On the first page of Defendant’s own Motion to Quash, directly under his name and before his phone number, Defendant listed his own address as *2885 Urzi Court, San Jose, CA—the same address* listed on the Proof of Service.

So while Defendant “declared under penalty of perjury under the laws of the State of California” that he was not personally served and *he has never resided at the address listed on the Proof of Service*, the plain evidence in the record contradicts Defendant’s assertions and fails to establish that service was improper.

Conclusion and Order

Accordingly, Defendant’s Motion to Quash Service of the Summons is **DENIED**.

SO ORDERED.

Date: June 24, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 11

Line 12

Line 13

Line 14

Line 15